

## 26STCV04510 26STCV04510

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Case Number: 26STCV04510 Hearing Date: August 13, 2026 Dept: 515

### NATURE OF

PROCEEDINGS: Hearing on Motion for Summary Adjudication

### Plaintiff's

Motion for Summary Adjudication is denied.

### BACKGROUND

#### Plaintiff Gregory

Wayne Walton, II (Plaintiff) filed this action against Equity Apartments, Equity Residential Management, LLC (Equity Residential), and Cleo Apartments (collectively, Defendants), alleging that Defendants unlawfully terminated his tenancy, coerced him into vacating, and reported inaccurate information about him to consumer credit reporting agencies.

#### The causes of

action in the First Amended Complaint are: (1) Violation of the Unruh Civil Rights Act – Arbitrary Discrimination; (2) Violation of the Unruh Civil Rights Act – Unequal Terms; (3) Violation of the Bane Act; (4) Wrongful Eviction / Violation of Just Cause Requirements; (5) Violation of the Consumer Credit Reporting Agencies Act; (6) Negligent Infliction of Emotional Distress; (7) Intentional Infliction of Emotional Distress; (8) Negligent Hiring, Training, and Supervision; (9) Unfair Business Practices; (10) Declaratory Relief; and (11) Punitive Damages.

#### Plaintiff filed

a Motion for Summary Adjudication. Equity Residential filed an Opposition.

On June 24,

2026, after Plaintiff filed the Motion, the Court sustained Equity Residential's Demurrer to the First Amended Complaint without leave to amend as to the First through Eighth and Tenth causes of action and overruled it as to the Ninth cause of action. The Court granted Equity Residential's Motion to Strike as to the Eleventh cause of action and the prayer for punitive damages, the allegations concerning Munguia-Brown v. Equity Residential, the allegations that Equity Residential was required to obtain authorization before furnishing credit information, the allegations concerning algorithmic decision-making, and the naming of Cleo Apartments as a defendant. The Court denied the Motion to Strike as to the naming of Equity Apartments and as to the allegations concerning the notice Plaintiff received.

#### REQUEST FOR JUDICIAL NOTICE

Plaintiff

requests judicial notice of Exhibits A and B, the March 17, 2022, and April 1, 2022, emails from Equity Residential to Plaintiff. Correspondence between the parties is not a matter listed in Evidence Code section 452, so the request is denied. The denial does not remove the emails from the record. Plaintiff authenticated both in his declaration, and Equity Residential does not dispute their content. (Walton Decl. ISO Mot. ¶¶ 4, 6; Equity Residential's Separate Statement in Opposition, Responses to Facts 1-7.) Therefore, the Court considers them as evidence.

Plaintiff

separately requests judicial notice of academic and empirical research on racial disparities in housing and eviction; federal agency materials, including Consumer Financial Protection Bureau enforcement actions and guidance, Department of Housing and Urban Development guidance on artificial intelligence, and a Government Accountability Office report on property technology; Equity Residential's securities filings, proxy statement, corporate governance documents, merger documents, and a press release announcing the leadership of the merged company; litigation and settlements concerning algorithmic rent setting and tenant screening; the settlement and April 8, 2024, findings in Munguia-Brown v. Equity Residential; a CityWatchLA article; a documentary film; and the Walton-Koebke Housing Racial Discrimination Framework and the Walton Pro Per Bias Evidentiary Framework.

Judicial notice

is confined to matters relevant to the issue at hand. (Mangini v.

R.J. Reynolds Tobacco Co. (1994) 7 Cal.4th 1057, 1063, overruled on another ground in *In re Tobacco Cases II* (2007) 41 Cal.4th 1257, 1276.) The one cause of action before the Court concerns the accuracy of what Equity Residential furnished to consumer credit reporting agencies about Plaintiff, and none of these materials bears on that question. The allegations they were offered to support, concerning Munguia-Brown, algorithmic decision-making, and punitive damages, were stricken. The research and reports fall outside Evidence Code section 452, subdivision (h), which permits notice only of facts and propositions not reasonably subject to dispute. The conclusions of a study are contestable by their nature. These requests are denied.

Plaintiff next

asks the Court to take judicial notice of *Morataya v. Fortades* (May 11, 2026, B341752) [nonpub. opn.], offered as evidence of a pattern of judicial conduct violating due process. That opinion is not certified for publication. An opinion of a California Court of Appeal that is not certified for publication or ordered published must not be cited or relied on by a court or a party in any other action. None of the enumerated exceptions applies here. (Cal. Rules of Court, rule 8.1115(a), (b).) Evidence Code section 451, subdivision (a), does not extend to an opinion that rule 8.1115 makes uncitable.

Plaintiff's

remaining request concerns a May 11, 2026, email from Equity Residential's counsel, offered through his Request for Judicial Notice of Defendants Counsel's Bad Faith Meet and Confer Email as evidence that Equity Residential did not confer in good faith. Plaintiff locates the obligation in Code of Civil Procedure section 437c, subdivision (a)(3), under which he asserts his own compliance. (Notice of Mot. at p. 6:1-6.) That subdivision fixes when a summary judgment motion must be heard relative to trial, and section 437c prescribes no meet and confer requirement, so the conduct of the parties' exchange decides nothing the Motion presents. The request is denied.

## LEGAL STANDARD

A party is

entitled to summary adjudication only if there is no triable issue of material fact and the party is entitled to judgment as a matter of law. (Code

Civ. Proc., § 437c, subd. (c).) A triable issue of material fact exists if the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850 (*Aguilar*).)

“A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Code Civ. Proc., § 437c, subd. (f)(1).) Such a motion proceeds in all procedural respects as a motion for summary judgment. (Code Civ. Proc., § 437c, subd. (f)(2).)

A plaintiff “has met that party’s burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(1).) Only then does the burden shift to the defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense to it. (*Ibid.*) The moving plaintiff bears the burden of persuasion that each element of the cause of action has been proved and hence that there is no defense to it. (*Aguilar, supra*, 25 Cal.4th at p. 850.) A plaintiff who would bear the burden of proof by a preponderance of the evidence at trial must present evidence that would require a reasonable trier of fact to find each underlying material fact more likely than not. (*Id.* at p. 851.)

The motion must be supported by affidavits, declarations, admissions, answers to interrogatories, depositions, and matters of which judicial notice shall or may be taken, and each material fact in the separate statement must be followed by a reference to the supporting evidence. (Code Civ. Proc., § 437c, subd. (b)(1).) The Court considers all of the evidence in the papers and all reasonable inferences from that evidence in the light most favorable to the opposing party. (*Avivi v. Centro Medico Urgente Medical Center* (2008) 159 Cal.App.4th 463, 467.)

The declarations of the moving party are strictly construed, and those of the opposing party are liberally construed. (D'Amico v. Board of Medical Examiners (1974) 11 Cal.3d 1, 20-21.)

## ANALYSIS

Plaintiff seeks  
summary adjudication of twelve issues.

### I. Dismissed Claims

First,  
Plaintiff seeks adjudication of his claim under the Consumer Credit Reporting Agencies Act (Issue One), his two claims under the Unruh Civil Rights Act (Issues Two and Three), his claim under the Bane Act (Issue Four), his claim under Civil Code section 1946.2 (Issue Five), his claim for negligent hiring, training, and supervision (Issue Eight), and his claim for punitive damages (Issue Ten). (Notice of Mot. at pp. 2:2-3:8, 4:1-7, 4:15-22.)

A motion for  
summary adjudication may be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. (Code Civ. Proc., § 437c, subd. (f)(1).) Each of these  
seven issues corresponds to a claim the Court removed from the case as against Equity Residential on June 24, 2026. The demurrer to the First through Eighth Causes of Action was sustained without leave to amend, and the Eleventh Cause of Action and the prayer for punitive damages were stricken. As against Equity Residential, no cause of action or claim for damages remains for the Motion to dispose of.

The June 24  
order resolved the Demurrer and Motion to Strike of Equity Residential alone, and the Court declined to strike the naming of Equity Apartments. A motion for summary adjudication may be made after 60 days have elapsed since the general appearance of each party against whom the motion is directed, or at any earlier time after the general appearance that the court directs on good cause shown. (Code Civ. Proc., § 437c, subd. (a)(1).) Equity  
Apartments has not appeared in this action, and the Motion accordingly proceeds only against Equity Residential. Even if Equity Apartments had appeared and

been served, Plaintiff's evidentiary showing consists of two emails Equity Residential sent him and his declaration about his dealings with Equity Residential. That showing establishes no element of any claim against any other defendant. The Court denies the Motion as to these seven issues.

Plaintiff's

supporting arguments, that the continuing violation doctrine and the discovery rule preserve claims the Court held time-barred, that Vella v. Hudgins (1977) 20 Cal.3d 251 leaves his claims unaffected by the unlawful detainer proceeding, and that the default judgment in that proceeding is void because the order for service by posting issued without a showing of diligence, are each directed at causes of action no longer pleaded against Equity Residential, and the Court does not reach them. (Mot. at pp. 13:15-26, 14:6-19.)

## II. Non-Adjudicable Issues

Next, Plaintiff

seeks rulings that the Munguia-Brown settlement and findings are admissible pattern evidence (Issue Six), that Equity Residential ratified the conduct at issue and thereby established corporate policy (Issue Seven), that Equity Residential and the other entities Plaintiff named operate as a single enterprise and are liable as alter egos (Issue Eleven), and that algorithmic evidence is admissible to prove discrimination and that Defendants owe a duty to audit such algorithms for disparate impact (Issue Twelve). (Notice of Mot. at pp. 3:9-25, 4:24-5:9.)

Issues Six and

Twelve ask the Court to rule in advance on the admissibility of two categories of evidence. Admissibility is not among the four matters Code of Civil Procedure section 473c subdivision (f)(1) permits a court to adjudicate, and a ruling that evidence may be received completely disposes of no cause of action, affirmative defense, claim for damages, or issue of duty. Additionally, the audit obligation Issue Twelve asks the Court to declare is not an element of the remaining cause of action.

Ratification,

the subject of Issue Seven, bears on a corporate employer's liability for exemplary damages. (Civ. Code, § 3294, subd. (b).) The Eleventh Cause of Action and the prayer for punitive damages were stricken on June 24, so no claim for damages under Civil Code

section 3294 remains. Establishing ratification would prove one element of such a claim rather than completely dispose of it. Alter ego, the subject of Issue Eleven, is a doctrine for disregarding the separate existence of entities. It is not a cause of action, an affirmative defense, a claim for damages, or an issue of duty.

#### Subdivision (t)

permits a party to move for summary adjudication of a legal issue that does not completely dispose of a cause of action, but only upon a joint stipulation of the parties whose claims or defenses the motion puts at issue and only after the court notifies the stipulating parties that the motion may be filed. (Code Civ. Proc., § 437c, subds. (t)(1), (2).) No stipulation was submitted and no such notification issued. These four issues are not properly before the Court on this Motion.

### III. Unfair Competition

#### Next, Plaintiff

seeks summary adjudication of the Ninth Cause of Action on the ground that Equity Residential's practices, including selective enforcement and unauthorized credit reporting, are unlawful, unfair, or fraudulent business practices under Business and Professions Code section 17200. (Notice of Mot. at p. 4:8-14; Mot. at pp. 9:20-10:7.) "By proscribing 'any unlawful' business practice, 'section 17200 "borrows" violations of other laws and treats them as unlawful practices' that the unfair competition law makes independently actionable." (Capito v. San Jose Healthcare System, LP (2024) 17 Cal.5th 273, 283-284.)

#### The demurrer to

this cause of action was overruled on the allegation that Equity Residential furnished information that Plaintiff owed a debt he did not owe and had failed to pay rent, that the information was inaccurate, and that it was furnished with knowledge of its inaccuracy. The predicate statute imposes an accuracy obligation. "A person shall not furnish information on a specific transaction or experience to any consumer credit reporting agency if the person knows or should know the information is incomplete or inaccurate." (Civ. Code, § 1785.25, subd. (a).)

#### Plaintiff

relies on Equity Residential's written promise that it would not commence reporting unless he opted in, and on his testimony that he never did. (Walton

Decl. ISO Mot. ¶¶ 4-6.) Equity Residential answers that the Court struck the authorization allegations on June 24 and that the theory therefore appears to be moot, and it opposes on that theory only out of caution. (Opp. at p. 4:7-10.) The point is well taken. The allegations premised on an authorization requirement were stricken, and the pleadings determine the scope of the issues on a motion for summary adjudication. (Nieto v. Blue Shield of California Life & Health Ins. Co. (2010) 181 Cal.App.4th 60, 74.) Section 1785.25, subdivision (a), addresses accuracy and not consent. That the emails are admissions of a party opponent under Evidence Code section 1220 establishes what Equity Residential said. Neither email describes the content of anything Equity Residential later furnished, and the same is true of the inference Plaintiff asks the Court to draw under Evidence Code section 413 from Equity Residential's failure to produce an opt-in record. (Mot. at p. 4:12-13.)

Equity

Residential also responds that no California law conditions the reporting of negative rental payment information on a tenant's authorization, and it directs the Court to Civil Code section 1954.07. (Opp. at pp. 3:26-4:21.) Section 1954.07 became operative on January 1, 2025, and does not govern conduct in 2022 and 2023. (Stats. 2024, ch. 279, § 1.) The provision in force when Equity Residential sent the March 17, 2022, email was Civil Code section 1954.06, which required a landlord of an assisted housing development to offer each tenant obligated under the lease the option to have rental payment information reported to a nationwide consumer reporting agency, upon written election. (Civ. Code, § 1954.06, subd. (a).) That section prescribed an offer and the form of the tenant's election. It did not forbid a landlord to furnish information in the absence of an election. Subdivision (c)(3) required the offer to include "a statement that all of the tenant's rental payments will be reported, regardless of whether the payments are timely, late, or missed." (Civ. Code, § 1954.06, subd. (c)(3).) A statute that contemplates the reporting of late and missed payments once a tenant elects reporting does not supply the consent precondition Plaintiff's theory requires. In any event, the section applied only to a landlord of an assisted housing development, and Plaintiff submitted no evidence that his apartment is part of such a development.

Here, Plaintiff's

evidence does not address the accuracy of what Equity Residential reported. His declaration states that Equity Residential reported negative information about him to consumer credit reporting agencies, including TransUnion, and that his

credit score subsequently declined. (Walton Decl. ISO Mot. ¶ 7.) It does not describe the content of any item furnished, so the Court cannot determine that anything furnished was incomplete or inaccurate. Plaintiff produced no credit report, and Equity Residential asks the Court to view the showing with distrust on that account. (Equity Residential's Separate Statement in Opposition, Responses to Facts 9, 10; Evid. Code, § 412.)

#### Plaintiff's

unlawful prong argument also identifies the Unruh Civil Rights Act, the Bane Act, Civil Code section 1946.2, and COVID-19 tenant protections as borrowed predicates. (Mot. at p. 9:22-24.) That those causes of action were dismissed on June 24 does not, by itself, remove them as predicates, but the evidence Plaintiff submitted on this Motion fails to establish a violation of any of them. The selective enforcement theory depends on a comparator fact: that other tenants with similar or worse payment histories received three-day notices and were not evicted. That fact is supported by a citation to the First Amended Complaint alone, as are the facts concerning the Munguia-Brown settlement and findings. (Separate Statement, Facts 15-18.) A party cannot rely on the allegations of his own pleadings, even if verified, to make or supplement the evidentiary showing required on summary judgment. (College Hospital, Inc. v. Superior Court (1994) 8 Cal.4th 704, 720, fn. 7.)

#### Plaintiff's

unfair and fraudulent prong theories depend on the same premise the Court has rejected, that Equity Residential was obliged to obtain his consent before reporting, and on the same absence of evidence about what was furnished. A fraudulent business practice is likely to deceive members of the public. (Bank of the West v. Superior Court (1992) 2 Cal.4th 1254, 1267.) Plaintiff submitted no evidence bearing on that question. The Court concludes that Plaintiff has not proved that Equity Residential engaged in an unlawful, unfair, or fraudulent business practice, and the burden never shifted to Equity Residential.

#### Equity

Residential separately argues that its reporting was disclosed in the Lease and permitted by state and federal law, and so cannot be unfair within the meaning of the statute. (Opp. at pp. 4:22-5:21.) Equity Residential also argues that the reporting was accurate, because Plaintiff did not pay rent and was evicted following a default judgment and writ of possession in the unlawful detainer action. (Opp. at pp. 5:22-6:20.) Because Plaintiff carried no part of his

burden, the Court has no occasion to reach either contention.

Plaintiff asks

the Court to adjudicate liability and narrow the remaining disputes to damages alone. (Mot. at p. 15:26-27.) A plaintiff prevails on summary adjudication only by proving each element of the cause of action, and damages are an element. A plaintiff therefore cannot obtain adjudication of liability with the amount of damages left for trial. (Paramount Petroleum Corp. v. Superior Court (2014) 227 Cal.App.4th 226, 241-242.) The relief

Plaintiff seeks is unavailable in the form he requests. Summary adjudication of the Ninth Cause of Action is denied.

#### IV. Sanctions

Finally,

Plaintiff asks the Court to issue an order to show cause why Equity Residential's counsel should not be sanctioned under Code of Civil Procedure section 128.7. (Mot. at p. 15:7-19.) The request is for relief on the Court's own motion under subdivision (c)(2), which permits a court to enter an order describing the conduct that appears to violate subdivision (b) and directing the offending attorney, law firm, or party to show cause. (Code Civ. Proc., § 128.7, subd. (c)(2).)

The Court has

reviewed the challenged papers and does not find conduct that appears to violate subdivision (b). Disagreement with an opponent's legal position is not a basis for an order to show cause. The Court declines to issue one.

#### CONCLUSION

Plaintiff's

Motion for Summary Adjudication is denied.